

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shadman Khan	Team: Squad #03	CCRB Case #: 202202062	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/16/2021 2:00 PM, Sunday, 05/16/2021 2:00 PM	Location of Incident: § 87(2)(b); 79th Precinct stationhouse	18 Mo. SOL 11/16/2022	Precinct: 79
Date/Time CV Reported Mon, 03/21/2022 1:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/01/2022 2:23 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Alvin Guthrie	16947	955965	079 PCT
2. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Robert Hunter	21769	962488	079 PCT
2. PO Daniel Shouler	13072	966337	079 PCT
3. PO Jean Souffrant	11002	958086	079 PCT
4. PO Angel Valenzuela	15501	966379	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . PO Alvin Guthrie	Force: At § 87(2)(b) in Brooklyn, Police Officer Alvin Guthrie used physical force against § 87(2)(b)	B . Unfounded
C . PO Alvin Guthrie	Abuse: At the 79th Precinct stationhouse, Police Officer Alvin Guthrie refused to provide his name to § 87(2)(b)	C . Unsubstantiated
D . PO Alvin Guthrie	Abuse: At the 79th Precinct stationhouse, Police Officer Alvin Guthrie refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

On March 21, 2022, § 87(2)(b) filed this complaint with IAB, generating Log #2022-07062, which was subsequently received by the CCRB on April 1, 2022.

On May 16, 2021, at approximately 12:00p.m., at § 87(2)(b), PO Alvin Guthrie, PO Robert Hunter, PO Daniel Shoulder, PO Jean Souffrant, and PO Angel Valenzuela from the 79th Precinct entered the premises and walked up to the § 87(2)(b)-floor landing (**Allegation A: Abuse of Authority, exonerated**). PO Guthrie moved towards § 87(2)(b) and grabbed him by the right shoulder. PO Guthrie pushed § 87(2)(b) and held him against the wall while he placed handcuffs on § 87(2)(b) (**Allegations B: Force, unfounded**).

§ 87(2)(b) was transported to the 79th Precinct stationhouse and processed for arrest. § 87(2)(b) was placed in a holding cell. After a few hours, § 87(2)(b) was removed from the holding cell and taken to a fingerprint machine. During this time, § 87(2)(b) asked PO Guthrie, “What’s your name and badge number?” PO Guthrie did not respond to § 87(2)(b)’s questions (**Allegations C and D: Abuse of Authority, unsubstantiated**). § 87(2)(b) was arrested and issued an order of protection as a result of this incident.

The investigation received ten body-worn camera (BWC) videos regarding this incident (Board Review 01 – Board Review 10; Summarized in Board Review 11 - 20).

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers entered § 87(2)(b) in Brooklyn.

In his statement to the CCRB, § 87(2)(b) stated that he had been in his apartment on the § 87(2)(b) floor of § 87(2)(b) with his mother, § 87(2)(b), and girlfriend, § 87(2)(b). § 87(2)(b) described the building as a brownstone house with § 87(2)(b) floors. The house had a main entrance in the front that led to a vestibule. There were stairs that led up to the § 87(2)(b) floor. At the time, § 87(2)(b) was in the kitchen cooking food for § 87(2)(b), § 87(2)(b) and § 87(2)(b) in the living room at the time. § 87(2)(b) spoke to § 87(2)(b) and § 87(2)(b) in the living room for a few moments when he heard footsteps coming up the stairs to the § 87(2)(b) floor. § 87(2)(b) also heard walkie-talkie noises coming from the stairs. § 87(2)(b) walked back towards the kitchen when he first saw PO Guthrie and four other officers. All officers stopped at the landing of the § 87(2)(b) floor. None of the officers entered § 87(2)(b)’s apartment. § 87(2)(b) believed that his stepfather let the officers inside past the main door because he had a copy of the keys. § 87(2)(b) believed this because he later saw his stepfather on the landing of the § 87(2)(b) floor (Board Review 21).

Event Chronology § 87(2)(b) shows that officers responded to the incident location for a visibility patrol and a family home visit. No additional details were provided (Board Review 31).

Probable cause to arrest I-card # § 87(2)(b) was generated on § 87(2)(b), for § 87(2)(b). § 87(2)(b) was wanted § 87(2)(b). The I-card listed the incident location as his resident address and was cancelled after § 87(2)(b) was arrested (Board Review 26).

In PO Hunter’s BWC video, at 08m02s, a male, identified by the investigation as § 87(2)(b)’s stepfather, arrives to the front of the building and informs officers that § 87(2)(b) lives on the § 87(2)(b) floor with a female and the stepfather’s wife. The stepfather opens the door to the § 87(2)(b) floor of the location and enters into the apartment. Multiple officers follow the stepfather into the location. Once inside, the stepfather

informs the officers that his wife is upstairs. At 09m19s, PO Hunter and PO Guthrie inform the stepfather that he has to go upstairs with them because officers cannot just go up the stairs. The stepfather states, “Okay. Go ahead,” and officers walk up the stairs to the § 87(2)(b) floor. At 09m54s, once at the stairs of the § 87(2)(b) floor, § 87(2)(b) appears at the top and asks who let the officers inside. PO Hunter informs § 87(2)(b) that they were let inside (Board Review 01).

In his statement to the CCRB, PO Guthrie stated that he responded to the incident location for a home visit regarding a complaint report that was made and in regard to a radio run involving a family dispute. The case involving the complaint report belonged to PO Hunter, which was being investigated since § 87(2)(b). The investigation led to the creation of a probable cause to arrest I-card for § 87(2)(b) which was active starting § 87(2)(b). The I-card listed § 87(2)(b) as the location of residence for § 87(2)(b). While at the location, PO Hunter spoke to an individual named § 87(2)(b), who identified himself as § 87(2)(b)'s stepfather. After speaking to § 87(2)(b) over the phone, he arrived at the front of the location. § 87(2)(b) went to the entrance of the location and opened the door using a copy of the keys of the location. § 87(2)(b) informed the officers that he lived at the location at the time. Additionally, due to past visits, PO Guthrie knew that § 87(2)(b) lived at the location. Once § 87(2)(b) opened the entrance door, he entered the house and took the officers on scene inside. PO Guthrie explained that § 87(2)(b) informed officers that § 87(2)(b) lived upstairs and showed officers the stairs inside. PO Guthrie then walked up the stairs with other officers and saw § 87(2)(b) standing at the top of stairs in the hallway. § 87(2)(b) asked the officers why they were there, and PO Guthrie informed him that there was an open complaint for menacing against § 87(2)(b) (Board Review 23).

A person's consent to police entry can be inferred from her conduct, i.e., her words, deeds, and gestures in admitting the police into her residence. People v. Long (Board Review 27).

PO Guthrie stated that he went to the location regarding a complaint that was made involving a family dispute. This is further supported by the event documentation received regarding this job. At the time, PO Guthrie and other officers spoke to § 87(2)(b) a person with apparent authority over the premises and who had keys that permitted access to the incident location. This is further shown in BWC, where § 87(2)(b) opens a locked door and proceeds inside while stating § 87(2)(b) is on the § 87(2)(b) floor. Furthermore, he informs officers his wife is upstairs when officers enter. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation (B) Force: At § 87(2)(b) in Brooklyn, Police Officer Alvin Guthrie used physical force against § 87(2)(b)

According to § 87(2)(b) once officers were at the § 87(2)(b)-floor landing, PO Guthrie asked § 87(2)(b) for his name, which he provided. PO Guthrie instructed § 87(2)(b) to turn around and put his hands behind his back because he was under arrest. PO Guthrie did not inform § 87(2)(b) why he was being arrested. § 87(2)(b) argued that he knew his rights and wished to know the reason, but PO Guthrie continued to tell § 87(2)(b) to turn around and put his hands behind his back. § 87(2)(b) only wore boxer shorts at the time and requested to put clothes on. § 87(2)(b) put on his pants and sneakers when PO Guthrie moved towards him and grabbed § 87(2)(b) by the right shoulder. PO Guthrie pushed § 87(2)(b) against a wall and placed handcuffs on § 87(2)(b) (Board Review 21).

In PO Guthrie's fourth BWC video, at 10m04s, PO Guthrie moves closer to § 87(2)(b) and informs him that he has to go with the officers. PO Guthrie places handcuffs on § 87(2)(b)'s right arm and turns him around while holding the left arm. § 87(2)(b) does not resist and turns around without any issue. PO Guthrie then places handcuffs on the left arm behind his back and informs § 87(2)(b) that he has a warrant for menacing with a firearm. PO Guthrie is not seen pushing § 87(2)(b) against a wall at any point during the interaction (Board Review 10).

BWC video showed that while PO Guthrie did place § 87(2)(b) in handcuffs, the extent of his interaction was limited to holding § 87(2)(b)'s arm while placing him in the handcuffs. BWC video does not show any moment in which PO Guthrie pushed § 87(2)(b) against a wall to place him in handcuffs. Since the BWC video shows that the alleged force did not occur, it is recommended that **Allegation B** be closed as **unfounded**.

Allegation (C) Abuse of Authority: At the 79th Precinct stationhouse, Police Officer Alvin Guthrie refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: At the 79th Precinct stationhouse, Police Officer Alvin Guthrie refused to provide his shield number to § 87(2)(b)

According to § 87(2)(b) once he was arrested, he was escorted to an unmarked vehicle and driven to the 79th Precinct. PO Guthrie escorted § 87(2)(b) to the front desk and was processed for the arrest. § 87(2)(b) was then taken to the holding cell area, where he was placed inside for a few hours. PO Guthrie returned and took § 87(2)(b) out of the holding cell and towards an area with a fingerprint machine. PO Guthrie instructed § 87(2)(b) to place his hands on the machine to have his fingerprints taken. During this time, § 87(2)(b) asked PO Guthrie, "What's your name and your badge number? I'm gonna report you." PO Guthrie smirked and laughed but did not respond to § 87(2)(b)'s questions. § 87(2)(b) was then returned to the holding cell area (Board Review 21).

The body worn camera video recordings end after § 87(2)(b) is lodged in the cell. Stationhouse video could not be requested because the complaint was filed over a year after the incident date, which is beyond the 30-day retention period of stationhouse video.

According to PO Guthrie, he did not recall if § 87(2)(b) asked for a shield number. PO Guthrie recalled informing § 87(2)(b) that he was the arresting officer and would process § 87(2)(b)'s arrest at the front desk. Once § 87(2)(b) was taken to the holding cells, he refused the reading of his Miranda rights. PO Guthrie did not recall if § 87(2)(b) asked for his shield number at the time. If § 87(2)(b) had asked for a shield number, then PO Guthrie provided it. (Board Review 23).

Officer must courteously and clearly state their rank, name, shield number and command, or otherwise provide them to anyone who requests it. Patrol Guide, Procedure 203-09 (Board Review 28).

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 29).
- PO Guthrie has been a member of service for eight years and has been a subject in two CCRB complaints and three allegations, of which two were substantiated.
 - 201906066 involved substantiated allegations a gun pointed and a search of premises against PO Guthrie. The Board recommended charges and the NYPD has not yet imposed discipline.

Mediation, Civil, and Criminal Histories

- This complaint was unsuitable for mediation.
- As of August 8, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 32).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 3

Investigator:	<u>Shadman Khan</u> Signature	<u>Investigator Shadman Khan</u> Print Title & Name	<u>September 2, 2022</u> Date
Squad Leader:	<u>Rolando Vasquez</u> Signature	<u>IM Rolando Vasquez</u> Print Title & Name	<u>9/9/2022</u> Date